

The Claremont City Council held a meeting on Wednesday, May 10, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the April 5, 2023, City Council meeting.

Mayor Girard asked for the Motion made in public for the City Manager’s raise, be added to the non-public minutes of April 5, 2023 City Council meeting.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the April 26, 2023, City Council meeting.

Councilor O’Hearne asked the roll call order be changed in the minutes of the April 26th, 2023 City Council meeting.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard stated Friday May 19, between 8:15am and 4:15pm the Claremont Opera House is hosting the 2023 New Hampshire Preservation Conference and award celebration.

The Claremont Chamber of Commerce is hosting an event at the Senior Center on May 20th, tickets are available on the Chamber’s website.

Claremont Police Department is in the process for their re-certification for the CLEA certification, there is link on the website for public feedback and comment. In June, CPD will host a site-based assessment as a part of this process.

Saturday May 27, 2023 Pine Hill Disc Golf Tournament will take place.

CITY MANAGER’S REPORT

Manager Manale noted the Utility Department was holding its annual flushing of water lines from May 15th through the 24th.

The bronze plaque commemorating the Santagate Bridge was stolen, if anyone has information, please call CPD.

The City has worked with the owner of the Ink Factory to confirm five existing city parking spots.

Councilor Koloski shared concern for citizens water bills and not receiving them.
Councilor Stone shared concern for a large water bill that was shared on social media, Manager Manale will follow up with the Water Department.

Councilor Koloski noted he liked the new format for the Monthly Reports, and asked if there was a way to track time of resources used for CDA, and be highlighted under the outside agency section.

APPOINTMENT TO BOARDS AND COMMITTEES

Tax Increment Finance District Advisory Board.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to appoint Martha Maki to Seat 2 on the Tax Increment Finance District Advisory Board.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

CCTV Board of Directors

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to appoint Lindsay Maass to Seat 4 on the Claremont Community Television, Inc Board of Directors.

Voice vote:

Mooshian - yes

Contois – yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne – opposed
Girard - yes
Motion carried 8-1 (1, opposed O’Hearne)

Parks and Recreation Commission

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to appoint Jeffery Chase for re-appointment to Seat 6 - at Large on the Parks and Recreation Commission.

Voice vote:
Mooshian - yes
Contois – yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne – opposed
Girard - yes
Motion carried 8-1 (1, opposed O’Hearne)

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to re-appoint Eric Zengota to Alternate Seat 2 Ward II on the Parks and Recreation Commission.

Voice vote:
Mooshian - yes
Contois – yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes

O’Hearne – opposed

Girard - yes

Motion carried 8-1 (1, opposed O’Hearne)

Claremont Housing Authority Commission

A motion was made by Assistant Mayo Matteau and seconded by Councilor Batchelder to re-appoint Doreen A. Needham to Seat 5 on the Claremont Housing Authority Commission.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – opposed

Girard - yes

Motion carried 8-1 (1, opposed O’Hearne)

Council Seats for Committees

Councilor Batchelder thanked the City Council for the opportunity to serve on the Conservation Commission, and the Conservation Commission for being welcoming, and then stated he would like to resign his seat.

Mayor Girard asked all who were in favor of accepting Councilor Batchelder’s resignation.

All Agreed.

Claremont Conservation Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to re-appoint Councilor Contois to the Claremont Conservation Commission.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - opposed

Matteau - yes
Stone - opposed
Batchelder - yes
O’Hearne – opposed
Girard - yes
Motion carried 6-3 (3 opposed, Koloski, Stone, O’Hearne)

HDC

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to appoint Councilor Batchelder to the Historic District Commission.

Voice vote:
Mooshian - yes
Contois – yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne – yes
Girard - yes
Motion carried 9-0

CITIZEN’S FORUM

Roberta Hood, AKA Robin Hood, Ward 1, Shared concern for the handicap temporary ramp discussed at the previous Council Meeting, stated her opinion of it not working, and suggested the doors at the end of building should be considered for a ramp. Ms. Hood also stated two handicap spaces are not enough. Manager Manale will discuss this with the Maintenance Superintendent. Ms. Hood also shared she has a hard time hearing Council from her seat. Councilor Koloski added there were headsets available.

Hope Damon, Representative for District 8, reported the education committee at the State House is looking at senate related education bills. While working on a special committee for housing. Ms. Damon noted attended a Vitals Communities Conference on ADU’s, and recently had a meeting with the City Manager and Nancy Merrill. Ms. Damon stated the committee is receptive to education concerns. Ms. Damon started an effort to organize the community reading of the Fredrick Douglas Speech “What is the Slave to your Fourth of July” This is part of the Black Heritage Trail of New Hampshire state wide programming.

OLD BUSINESS

Fee Schedule – Public Hearing

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to take the Fee Schedule off the table.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

Mayor Girard asked what the independent contractor rate was, Director Lawrence stated it was \$300 per month.

Mayor Girard opened a public hearing.

Chuck Allen, Ward 3, shared concern for the Arrowhead fee schedule and the rental prices.

Mayor Girard closed the public hearing.

Mayor Girard asked how to bring CSBCC users back and improve memberships while raising the rates. Manager Manale stated these concerns will be discussed during the CSBCC final report.

Councilor Koloski stated his concern for how Council came to these rates.

Assistant Mayor Matteau stated she researched local recreation centers and gym prices before the last meeting, and noted even with our increased fees we are still below other communities.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to adopt the 2024 Fee Schedule in effect on July 1, 2023.

Voice vote:

Mooshian - yes

Contois – yes

Limoges - yes

Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne – yes
Girard - yes
Motion carried 9-0

NEW BUSINESS

Claremont Federal Funding Update

Manager Manale, reviewed the Merchant McIntyre consultants’ monthly updates.

City of Claremont – Monthly Federal Funding Update *April 2023*

Submitted and Pending:

FY24 Congressionally Directed Spending Request – Sugar River Land Redevelopment Project

Amount: \$4,500,000

Description: MM submitted applications with the City’s Congressional Delegation for funding to redevelop land on the north side of the Sugar River.

Timing: Submitted in the Senate on March 10th and in the House on March 14th. Updates on Senate consideration anticipated mid-April.

FY24 Congressionally Directed Spending Request – Claremont Police Department

Amount: \$1,300,000

Description: MM submitted applications with the City’s Congressional Delegation for funding to update communications equipment and record-keeping software for the Claremont Police Department.

Timing: Submitted in the Senate on March 10th and in the House on March 14th. Updates on Senate consideration anticipated mid-April.

Result: This project was one of fifteen projects selected by the City’s House Member for consideration by the House Appropriations Committee.

Funding In Progress:

Drawdown of FY22 Congressionally Directed Spending Award – Opera House Sprinkler Upgrade

Amount: \$100,000

Description: MM facilitated conversations with USDA Rural Development to drawdown funding the City was awarded in Fiscal Year 2022 for updates to the sprinkler system at the Claremont Opera House. MM is currently working with City staff to complete the necessary application to receive funding.

Timing: This application is due on April 14, 2023.

DOT Safe Streets and Roads for All (SS4A) Grant Program

Amount: Award floor of \$100,000.

Description: MM has begun working with the City to apply for an SS4A Planning and Demonstration Grant in coordination with Sullivan County. This grant will provide funding for the development of a county-wide Safe Streets Action Plan, which will enable both the City and County to pursue additional funding for plan implementation.

Timing: This application is due on July 10, 2023.

NBRC Catalyst Program

Amount: Award ceiling of \$500,000.

Description: MM has begun working with the City to apply for an NBRC grant, which will cover renovations at the Claremont Creative Center.

Timing: Letter of Intent is due on April 21, 2023. Full applications due on June 2, 2023 by invitation only.

Upcoming Grants Under Consideration:

DOT Charging and Fueling Infrastructure (CFI) Discretionary Grant Program

Amount: Award floor of \$500,000.

Description: MM will work with Claremont to prepare an application for the deployment of EV charging infrastructure. Through this process, MM and Claremont will evaluate potential benefits of partnering with Sullivan County on this application.

Timing: This application is due on May 30, 2023.

FY24 DOT Rebuilding American Infrastructure with Sustainability and Equity (RAISE)

Amount: \$25 million maximum for capital construction projects.

Description: MM will work with Claremont to prepare an “umbrella project” incorporating infrastructure priorities for Charlestown Road redevelopment.

Timing: MM will begin working with the City on this application in Summer 2023, with the application anticipated for release in late 2023 and an anticipated submission deadline in early 2024

City of Claremont – Monthly Federal Funding Update

May 2023

Submitted and Pending:

FY24 Congressionally Directed Spending Request – Sugar River Land Redevelopment Project

Amount: \$4,500,000

Description: MM submitted applications with the City’s Congressional Delegation for funding to redevelop land on the north side of the Sugar River.

Result: This project was selected by one of the City’s U.S. Senators for consideration by the Senate Appropriations Committee.

Timing: Updates on Senate consideration anticipated in June/July.

FY24 Congressionally Directed Spending Request – Claremont Police Department

Amount: \$1,300,000

Description: MM submitted applications with the City’s Congressional Delegation for funding to update communications equipment and record-keeping software for the Claremont Police Department.

Result: This project was one of fifteen projects selected by the City’s House Member for consideration by the House Appropriations Committee. Additionally, this project was selected by one of the City’s U.S. Senators for consideration by the Senate Appropriations Committee.

Timing: Updates on House and Senate consideration anticipated in June/July.

Drawdown of FY22 Congressionally Directed Spending Award – Opera House Sprinkler Upgrade

Amount: \$100,000

Description: MM facilitated conversations with USDA Rural Development to drawdown funding the City was awarded in Fiscal Year 2022 for updates to the sprinkler system at the Claremont Opera House.

Results: MM worked with City staff to complete the necessary application to receive funding and submitted the application on April 14, 2023.

Timing: MM anticipates continued conversations with USDA on the project throughout May and June.

NBRC Catalyst Program

Amount: \$473,816

Description: MM worked with City staff to submit a Letter of Interest for the NBRC Catalyst Program. Requested grant funding would cover renovations at the Claremont Creative Center.

Timing: Invitations for full applications expected in early May. Full applications due on June 2, 2023.

Funding In Progress:

DOT Safe Streets and Roads for All (SS4A) Grant Program

Amount: Award floor of \$100,000.

Description: MM has begun working with the City to apply for an SS4A Planning and Demonstration Grant in coordination with Sullivan County. This grant will provide funding for the development of a county-wide Safe Streets Action Plan, which will enable both the City and County to pursue additional funding for plan implementation.

Update: MM has begun distributing template community support materials to the City and County. These materials are an important component of the application and will help ensure its competitiveness.

Timing: This application is due on July 10, 2023.

DOT Charging and Fueling Infrastructure (CFI) Discretionary Grant Program

Amount: Award floor of \$500,000.

Description: MM has begun discussions with the City and Sullivan County on a potential application for funding to deploy of EV charging infrastructure.

Timing: This application is due on May 30, 2023.

Upcoming Grants Under Consideration:

FY24 DOT Rebuilding American Infrastructure with Sustainability and Equity (RAISE)

Amount: \$25 million maximum for capital construction projects.

Description: MM will work with Claremont to prepare an “umbrella project” incorporating infrastructure priorities for Charlestown Road redevelopment.

Timing: MM will begin working with the City on this application in Summer 2023, with the application anticipated for release in late 2023 and an anticipated submission deadline in early 2024.

Food Truck Policy Discussion

Councilor Stone started the discussion on the Food Truck Policy. Councilor Stone Suggested changing the name to Mobile Food Unit

Councilor Koloski shared concern for the times, Assistant Mayor Matteau suggested not extending time frames but instead add language for special permissions. By consensus Council agreed to add language into the Ordinance that states “unless permitted otherwise” to the time frame.

Mayor Girard noted in Section 8-135- wording needs to be corrected to mobile food units.

Councilor Koloski suggested removing farmers market language as there hasn’t been one in a long time.

Councilor Stone will make the adjustments and then send it to the City Manager to then send to legal for review.

- **DIVISION 2. - SPECIAL PROVISIONS FOR FOOD/BEVERAGE VENDORS FROM ^[5] Mobile food unit**

Footnotes:

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Editor’s note— Ord. No. 567, § 3, adopted June 12, 2019, set out provisions intended for use as §§ 8-126—8-130. To preserve the numbering style of this Code, and at the editor’s discretion, these provisions have been included as Div. 2 §§ 8-131—8-135.

- **Sec. 8-131. - Definitions.**

As used in this division 2, the following terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Mobile food unit means a food service establishment mounted on wheels or otherwise designed to be immediately moveable.

Mobil Food Vendor means a hawker or peddler (as defined in this article V) selling or offering for sale food and/or beverages from a Mobile food unit.

Ice cream truck means a motor vehicle used as the point of retail sales of commercially prepared, pre-wrapped or prepackaged or hand scooped or soft-serve ice cream, frozen yogurt, frozen custard, flavored frozen water or similar frozen products. Non-frozen items such as commercially prepared pre-packaged soft drinks, candy, chewing gum and snack food may be sold from an ice cream truck provided the principal product sold is ice cream and/or similar frozen dessert products. An ice cream truck is a type of food truck.

(Ord. No. 567, § 3, 6-12-2019)

- **Sec. 8-132. - Statement of purpose and interpretation.**

The purpose of this division 2 is to provide for the regulation of sales by Mobil Food Vendor within the city. This is necessary to ensure the free flow of motor vehicle and pedestrian traffic and to promote public health, safety and welfare, while providing the opportunity for Mobil Food Vendor to operate within the city. Mobile food unit are subject to all provisions of this article V except that where division 2 conflict with any other provisions of article V, those in division 2 shall control.

(Ord. No. 567, § 3, 6-12-2019)

- **Sec. 8-133. - Permit required; fees.**

No person shall act as a mobile food vendor within the city unless he or she has obtained a valid permit from the planning and development department. A *Mobile food unit* permit shall take the place of the permit required for hawkers, peddlers and itinerant vendors under [section 8-117](#), shall require the same license from the New Hampshire Secretary of State's Office under RSA 320:8 or RSA 321:4, and shall be subject to both the permit requirements under [section 8-118](#) and the following additional requirements:

General permit application for operation within the City of Claremont, in addition may request a location on city property.

(1)

Applicants may apply for daily, weekly, or quarterly permits, or for special event permits. Vendors to whom permits are issued have discretion about how much of the day, week or quarter they actually occupy their permitted space. When more applications are received for spaces than are available during any particular quarter, week or day, the planning and development department shall determine the allocation by lottery; provided, however, that vendors who apply for a quarterly permit

shall be given preference for designated spaces, and remaining spaces will be allocated to other applicants. When more applications are received for spaces than are available during any special event, the planning and development department shall determine the allocation by lottery.

BUDGET

Preliminary Budget Discussions

Manager Manale, submitted the proposed budget to City Council. Manager Manale and Director Mulholland presented the preliminary Budget to the Council, Director Mulholland prepared a slide show presentation for the Council.

Assessing

Assessor Stephan Hamilton presented the Assessing Budget to Council. Mr. Hamilton noted there are structural changes to the assessing budget with a balance for contracted services and salaried employees, and noted some cost savings are offset by re-evaluation.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to tentatively approve the Assessing Budget for \$318,487.00

Roll call:

Mooshian - yes

Contois –yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

Welfare

Director Carr presented the Welfare Budget to Council, and noted Welfare is statutory in the State of NH. Ms. Carr noted the Welfare Department has been navigating local state and federal programs with only a two-person department, and reminded all when she started, Welfare had four people in the department. Director Carr noted the biggest budget driver is housing, and noted the uptick in rentals. The MOU with

Southwestern has increased, and cremation/burial requests have increased state wide. Director Carr also mentioned an increase due to more meetings are now held in-person as opposed to virtually during COVID.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to tentatively approve the Welfare Budget for \$ 410,563.00

Roll call:

Mooshian - yes

Contois –yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne – yes

Girard - yes

Motion carried 9-0

Library

Director Grace presented the Library Budget to Council. Director Grace commented on how things are starting to pick up at library after COVID. Carpet has been installed, and the library is working to re-configure adult services, painting, and the children’s area. Director Grace also mentioned the collaboration with school systems have picked up. Director Grace noted the biggest change in the budget was building maintenance, with repairs to the roof, library steps, young adult reading area, carpet and the floor in children’s area (lower level of library).

Mayor Girard asked how staffing is. Director Grace replied the library is down two part time positions, and recently received a few applicants that look promising.

A motion was made by Councilor Limoges and seconded by Councilor Koloski to tentatively approve the Library Budget for \$ 441,993.00

Councilor Stone questioned book expenditures, Director Grace noted the rising costs and the purchasing of young adult and graphic novels to improve the young adult area.

Roll call:

Mooshian - yes

Contois –yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne – yes
Girard - yes
Motion carried 9-0

Elections

Director Mulholland explained the Elections Budget is based on two elections, Council elections this November and the Presidential Primary.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to tentatively Approve the Elections Budget \$24,780.00

Roll call:

Mooshian - yes
Contois –yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O'Hearne – yes
Girard - yes
Motion carried 9-0

Debt Retirement (Debt Service)

Director Mulholland explained the Debt Retirement Service Budget is decreasing due to a bond being paid off.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone tentatively Approve Debt Retirement for \$ 876,323.00

Roll call:

Mooshian - yes
Contois –yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O'Hearne – yes
Girard - yes
Motion carried 9-0

Policy

Manager Manale presented the Policy Budget to Council. Manager Manale noted the reduction of consulting services due to not needing a consultant to fill the City Manager's position. Mr. Manale also noted the Historical Society building has not been maintained and would like to start.

A motion was made by Councilor O'Hearne and seconded by Councilor Batchelder to tentatively approve the Policy Budget for \$631,841.00.

Roll call:

Mooshian - yes

Contois –yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne – yes

Girard - yes

Motion carried 9-0

Outside Agency Request

Manager Manale gave a brief overview of the Outside agency requests, and wanted to make sure outside agencies were included in this budget.

Brenda Burns, Director of Meals on Wheels gave a presentation to Council, and noted the organization has not received funding from Claremont since 2011, and asked the City for \$10,000.00. The Budget book only had a \$5,000.00 budget line.

Keith Thibault, Chief Development Officer of Southwestern Community Services, gave an in depth presentation to Council and asked the City for \$30,000.00.

Manager Manale, presented Arrowhead's Outside Agency Budget of \$9,000.00. Mr. Manale explained this amount is because that is how much was spent while they were open for only sixteen days.

A motion was made by Councilor Stone and seconded by Councilor Limoges to Tentatively approve the Outside Agency Request adding \$10,000.00 to Meals on Wheels totaling \$49,000.00.

Roll call:

Mooshian - yes

Contois –yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes
Batchelder - yes
O’Hearne – yes
Girard - yes
Motion carried 9-0

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked for the Status of the HVAC system in the Council Chambers as we are coming into the summer months.

Councilor Stone suggested taking down the Covid Posters on City Hall doors.

Councilor Koloski would like to see historical pictures hung back onto the Council Chamber walls, Councilor Koloski also asked for a status on the smokestack.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:42 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call:
Mooshian - yes
Contois –yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne – yes
Girard - yes
Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council